Strait board their pilots out of the "BONIFREP" zone.

The boarding positions are the following (WGS 84):

Eastern boarding position: 41° 24 .80 N 009° 30 .00 E;
Western boarding position: 41° 17 .28 N 008° 58 .50 E.

4.1 Relevant rules and regulations in force in the area

The Strait of Bonifacio falls into the category of "Straits used for international navigation" regulated by the "United Nations Convention on the Law of the Sea" (UNCLOS) better known as the Montego Bay Convention (10 December 1982).

The maritime traffic is represented mainly by merchant ships that cross the Strait along east-west direction (several dozens of ships per day). Considering the traffic that occurs in the direction north-south, it concerns mainly passenger ships (approximately ten daily connections) is very intense and growing during the summer, especially between Bonifacio

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SOURCE: MEPC.204(62).pdf
the direction north-south, it concerns mainly passenger ships (approximately ten daily connections) is very intense and growing during the summer, especially between Bonifacio (Corsica) and Santa Teresa di Gallura (Sardinia). In addition, there are about 5,000 pleasure craft crossing this area during the summer season.

Regulation applied to navigation on the Strait of Bonifacio is based on resolution A.766(18) adopted in 1993 by IMO. This text urges ships carrying hazardous materials to avoid along this seaway. It has been complemented by circulars of IMO SN/Circ.198 and 201 (26 May 1998) concerning "routeing measures other than traffic separation schemes" and "mandatory ship reporting systems" applicable to the Bouches of Bonifacio from 1 December 1998 at 00:00 a.m.

France and Italy have implemented these provisions through the establishment of the rule "Bonifacio Trafic", that represents a more restrictive device; inasmuch as the French and Italian ships carrying hazardous materials are banned entirely from transit of the "Bouches of Bonifacio".

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SOURCE: MEPC.204(62).pdf
Italian ships carrying hazardous materials are banned entirely from transit of the "Bouches of Bonifacio".

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For this reason, in 1993, both Italy, with the Decree of 26 February 1993 of the Italian Ministry of Merchant Marine, and France, by ordinance of 15 February of the Prefecture of Toulon, have banned the transit of tankers flying Italian or French flag that carrying hydrocarbons and other hazardous and noxious s ubstances, as defined by international conventions in force in both countries1.

On the basis of these decrees, the prohibition of navigation in the Strait does not apply to merchant ships flying flags of third countries and to Italian and French ships empty or those that carry different cargoes, which, even if properly ballasted, however represent an environmental risk factor in case of accident for the presence of fuel in their tanks. This ban has led to a reduction of marine traffic, but at the same time, it leaves the possible passage

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SOURCE: MEPC.204(62).pdf
environmental risk factor in case of accident for the presence of fuel in their tanks. This ban has led to a reduction of marine traffic, but at the same time, it leaves the possible passage of ships flying other flags and often these ships are in unsafe conditions (especially the lack of double hull or similar technologies) and poor maintenance.

Moreover, the arrêté n° 84/98 of 3 November 1998 of the Prefecture Maritime of Toulon 2 (amended by the arrêté 56/2003 of the Prefecture Maritime of Toulon) disciplines the navigation in the Strait of Bonifacio to prevent accidental episodes of marine pollution.

It institutes areas of caution at the extreme of bearings recommended double sense of movement, and the creation of the system of m onitoring of ships from a radius of 20 miles from the Strait of Bonifacio. In parallel, the Decree of Italian Ministry of Transport and Navigation on the organization of traffic in the Bonifacio's Strait establishes the same procedures contained in the Decree n° 84/98.

Furthermore, a technical agreement between Italy and France to implement the reporting

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SOURCE: MEPC.204(62).pdf
Navigation on the organization of traffic in the Bonifacio's Strait establishes the same procedures contained in the Decree n° 84/98.

Furthermore, a technical agreement between Italy and France to implement the reporting system of the ships in the Bouches of Bonifacio (Bonifacio Trafic) was signed in Rome on 3 June 1999.

Moreover, in order to restrict dangerous maritime traffic through Bonifacio Strait, it was drawn up in Italy the " Accordo volontario per l 'attuazione di una serie di interventi finalizzati al conseguimento di più elevati standard di sicurezza ambientale in materia di trasporti marittimi di sostanze pericolose" (Voluntary agreement to carrying out a series of interventions aimed at the achievement of higher security envir onmental standards concerning the maritime transport of dangerous substances), signed by the Italian Ministry of the Environment, Land and Sea, by the Italian Ministry of Transportation and Navigation, by Confindustria, by Assoporti, by some environmental organizations and by unions (Rome, 1 June 2001).

Inter alia, the sixth article of the agreement foresaw the commitment by companies to use

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SOURCE: MEPC.204(62).pdf
Assoporti, by some environmental organizations and by unions (Rome, 1 June 2001).

Inter alia, the sixth article of the agreement foresaw the commitment by companies to use from 1 July 2001 ships carrying dangerous substances listed in Annexes I and II of MARPOL 73/78 solely based on contracts that explicitly exclude the transit in the Strait of Bonifacio, against a number of other compensations by government, including the engagement in an international venue for the encouragement of a PSSA in the Strait of Bonifacio.

1 Particularly, the Decree n°1/93 (signed in Toulon on 15 February 1993) of the Prefecture maritime de la Mediterranée, applicable only to French ships, prohibits in the Bouches of Bonifacio the circulation of tankers that carrying hydrocarbon and ships carrying hazardous or toxic materials. The annex of the Decree lists the hydrocarbons and the substances in question, in refe rence to the MARPOL Convention. At the same time, the Decree of the Italian merchant marine of 26 February 1993 prohibits the movement of Italian tanker carrying hydrocarbon and ships carrying hazardous or toxic materials.

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SOURCE: MEPC.204(62).pdf
At the same time, the Decree of the Italian merchant marine of 26 February 1993 prohibits the movement of Italian tanker carrying hydrocarbon and ships carrying hazardous or toxic materials.
2 Arrêté Prefectoral n. 84/94 del 3 novembre 1998 della Prefettura Marittima di Tolone "Réglementant la navigation dans le Strait of Bonifacio en vue de prévenir les pollution marines accidentelles".
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Particularly, the sixth article of the Voluntary Agreement provides that:

"6.1 Confindustria and the interested industrial sectors undertake to promote immediately the insertion in the charter party for the use of ships carrying dangerous substances listed in Annexes I and II of MARPOL 73/78 of clauses that expressly exclude the transit in the Strait of Bonifacio.

6.2 From 1 July 2001, Confindustria and the interested industrial sectors, also on behalf of firms and associated companies, undertake to use ships carrying

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SOURCE: MEPC.204(62).pdf
exclude the transit in the Strait of Bonifacio.

6.2 From 1 July 2001, Confindustria and the interested industrial sectors, also on behalf of firms and associated companies, undertake to use ships carrying
dangerous substances listed in Annexes I and II of MARPOL 73/78 solely based on

contracts that explicitly exclude the transit in the Strait of Bonifacio

6.3 The government engages to act in all EU and international venues to achieve the elimination of dangerous substances traffic in the Strait of Bonifacio, starting by defining by IMO the Strait of Bonifacio as Particularly Sensitive Sea Area (PSSA). Moreover, the government engages to promote every type of voluntary adherence of the EU member and candidate states to the above-mentioned elimination of dangerous substances traffic in the Strait of Bonifacio."

In the end, by the Decree of the Italian Ministry of Infrastructures and Transport of 29 July 2008 "definition of the control of maritime traffic area in the Bouches of Bonifacio and activation of the relevant control centre at the Harbour Office of La Maddalena", was

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SOURCE: MEPC.204(62).pdf
of 29 July 2008 "definition of the control of maritime traffic area in the Bouches of Bonifacio and activation of the relevant control centre at the Harbour Office of La Maddalena", was activated the centre VTS (Vessel Traffic Services) of the Bouches of Bonifacio, whose international name is "Bonifacio Trafic" and whose headquarters is located at the area Guardia Vecchia, under the authority of the Harbour Office Coast Guard of La Maddalena.

Existing routeing measures and mandatory systems are set out in the chartlet, below.